



URGENT UPDATE: Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk

1 message

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Thu, 11 Dec 2025 at 03:33

Dear Chairs and Company Secretary,

I write to provide an urgent update directly relevant to the material governance risks I reported to your committees.

As you are aware, after exhausting all internal channels—including executive leadership who de-escalated the matter back to the source of the harm (narrative at the executive level has been procedurally closed)—I was forced to file a dispute with the CCMA and notify your committees of the systemic failures.

On 10 December 2025, the company's legal representative, Mr. Xollie Vincent Manyati, filed an Opposing Affidavit with the CCMA seeking to have my case dismissed on technical grounds (case WEC123564-25). A copy is attached for your immediate attention.

This document is not merely a legal filing; it is a tangible exhibit of the very institutional bad faith and procedural abuse I have been reporting. It demonstrates that the company's response to a serious discrimination and victimisation case is to:

1. Ignore the Substance Entirely: The affidavit makes no attempt to address the core allegations of discrimination ("Wilma" incident), victimisation, or the breach of duty of care. It focuses solely on a technical argument about timing, confirming the company's strategy is to avoid scrutiny of its conduct.
2. Engage in Factual Misrepresentation: It dismissively misstates my professional title, indicating a lack of diligence or a deliberate attempt to diminish my standing.
3. Attack the Complainant's Character: It contains unfounded personal attacks, labelling me as having an "untruthful character," which is a common tactic to intimidate and discredit rather than engage with facts.
4. Demonstrate a Punitive Posture: It shockingly requests that the CCMA dismiss my application "with cost," an extraordinary demand intended to punish an employee who is already in documented financial distress due to the company's actions.
5. Trivialise Severe Harm: It argues the company would suffer "severe prejudice" from the cost of travelling from Johannesburg to Cape Town for a hearing, while I am facing destitution and a health crisis. This juxtaposition reveals a profound failure of ethical perspective and duty of care.

Governance Implications:

This legal response is a direct outcome of the executive failure to intervene meaningfully. It signifies that the corporate apparatus is now being used to legally oppose an employee in crisis rather than to investigate and remediate the serious underlying issues. I have prepared a comprehensive point-by-point rebuttal to this affidavit for submission to the CCMA, which details the factual inaccuracies, continuous nature of the harm, and the bad faith inherent in the Respondent's opposition.

- Materially increases legal and reputational risk by creating a public record of aggressive opposition to a discrimination complainant.
- Validates the allegation of a cover-up and institutional bad faith.
- Directly engages the mandate of the Social & Ethics Committee (monitoring the company's activities regarding the EEA and ethical conduct) and the Risk Committee (overseeing material legal and reputational risk).

My urgent plea for interim relief to prevent destitution stands. This affidavit only heightens the immediacy of the required intervention.

I therefore reiterate my request for the Board's committees to:

1. Acknowledge receipt of this escalating evidence.
1. Intervene to ensure an independent, external investigation into the entire matter.
2. Mandate the provision of interim relief (paid leave, hardship payment) to prevent irreversible personal harm.
3. Review the strategy being employed by the company's legal and HR representatives in this matter.

The choice is now stark: the Board can oversee a fair, external process to resolve a serious internal failure, or it can allow the company's resources to be used to litigate against an employee it has harmed, guaranteeing greater public exposure and liability.

I remain available for any direct communication from the Board or its designated independent representative.

Please note: To prevent another procedural deadlock like the 30-day institutional silence I experienced previously, I require, at minimum, a formal acknowledgment of receipt of this update by Friday, 12 December 2025, at 12:00 sharp.

Sincerely,

Wilbur Matthee

Attached: Respondent's Opposing Affidavit (10 Dec 2025)



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